

Court No. - 1

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Learned counsel for the petitioner wants some time to take necessary steps to make necessary corrections in the case title.

Time prays for is allowed.

Let this petition for writ be listed on 05.12.2017.

Order Date :- 30.11.2017

Shubham

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

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Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

The counsel for the petitioner wants to withdraw this application.

Accordingly, the application is dismissed as withdrawn. The petitioner is at liberty to move an application afresh to substitute the present petitioner by his heirs.

List this petition on 11th December 2017.

Order Date :- 5.12.2017

S.S.

(Ashok Kumar, J.)

(Govind Mathur, J.)

Court No. - 21

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

As prayed, put up tomorrow i.e. 4.1.2018.

Order Date :- 3.1.2018

Sumaira

Court No. - 38

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

As prayed, put up this matter on 10.01.2018.

Order Date :- 5.1.2018

Shahid

Court No. - 21

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Learned counsel for the petitioner is permitted to correct the description of the petitioner in the array of the parties during the course of the day.

It is contended that despite having deposited the arrears, the electricity connection of the petitioner was disconnected and not restored and thereafter, the petitioner approached the consumer forum by filing a complaint. vide order dated 22.8.2015, the claim of the petitioner was allowed and the respondent was directed to restore the connection. It is submitted that in compliance of the order, though, connection was re-restored but neither any meter was installed nor any bill was raised. All of a sudden, proceedings for recovering a sum of Rs.3,85,430/- have been initiated.

Sri Kamal Kesarwani holding brief of Sri Baleshwar Chaturvedi, who has accepted notice on behalf of respondent No.2, states that the order passed by the consumer forum was challenged in appeal wherein an interim order has been passed.

The petitioner was having a commercial connection. Since the disputed questions of fact are involved, it would be appropriate that the original record pertaining to the connection of the petitioner be produced.

Let a petition be placed on 23.01.2018 and the record shall be produced before us.

Till then, no coercive action shall be taken against the petitioner pursuant to the recovery notice dated 27.09.2017 issued by the respondent No.2.

Order Date :- 11.1.2018

Ashish Tripathi

Court No. - 21

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

(Order on Civil Misc. Impleadment Application No.425329 of 2017)

In view of the order of date permitting the learned counsel for the petitioner to carry out necessary correction, this impleadment application has rendered infructuous and the same accordingly stands dismissed.

Order Date :- 11.1.2018

Ashish Tripathi

Court No. - 21

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Case called out. Neither learned counsel for the petitioner nor learned counsel for respondents is present.

List in the next cause list.

Order Date :- 23.1.2018

Pravin

Court No. - 40

Case :- WRIT - C No. - 57042 of 2017

Petitioner :- Bipati Ram (Died) Thru Legal Heirs Maan Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ravi Prakash Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and learned counsel for the respondent-Electricity Department.

It has been pointed out that against the order passed by the District Consumer Forum the Electricity Department has filed an appeal before the State Consumer Forum where on 31st of January, 2017 the order of the District Consumer Forum in favour of the petitioner dated 22.8.2015 had been stayed.

Learned counsel for the Electricity Department contends that the facts of filing of the appeal and passing of the stay order has not been disclosed in the writ petition.

Learned counsel for the petitioner submits that since notices had not been served in the said appeal therefore this fact was not brought on record.

The second contention of the learned counsel for Electricity Department is that the original petitioner Bipati Ram had died and he has been substituted by his heirs who filed a separate writ petition being writ petition no.45644 of 2017. The same was entertained and the following order was passed on 22.9.2017:

"The petitioners have filed this petition disputing the correctness of the electricity bill.

The petitioners have a remedy under Clause 6.5 of U.P. Electricity Supply Code, 2005.

However, as none has appeared for the petitioners, let the petition be listed in the next cause list.

Sri Baleshwar Chaturvedi has appeared for the respondents."

Learned counsel for the petitioner submits that the said writ petition challenges the recovery which was of a lesser amount which has now increased and, therefore, a fresh writ petition has been filed.

We find that filing of the first writ petition has a direct and relevant bearing on the present case, inasmuch as, the previous amount challenged is also subject matter of the present proceedings. There is a total concealment of fact by the petitioner of the filing of the earlier writ petition no.45644 of 2017. This concealment of fact, therefore, disentitles the petitioner for any discretionary relief in the second writ petition.

This second writ petition was not maintainable and consequently we dismiss the same and vacate the interim order passed herein without prejudice to the rights of the petitioner to pursue his remedy in terms of the order dated 22.9.2017 or seek such further relief in the same writ petition, that is stated to be pending, after informing the Court about the status of the proceedings before the State Consumer Forum.

Subject to the above observations, the writ petition is dismissed.

Order Date :- 8.5.2018
KA